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SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:
Date Purchased: 3/2/09

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KING SOLOMON PETERSON,

SUMMONS

Plaintiff,

-against-

Plaintiff designates
BRONX County as the
place of trial.

The basis of venue is:
CPLR 504 (3)

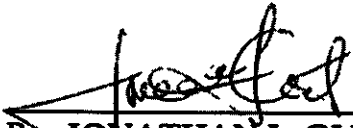
CITY OF NEW YORK, THE NEW YORK CITY POLICE
DEPARTMENT, P.O. ABDIEL ANDERSON, P.O. MANUEL
SANCHEZ and OFFICER[S] JOHN AND JAMES DOE,
names being fictitious and meant to designate arresting
officers,

Defendants.
-----X

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and
serve a copy of your answer, or, if the complaint is not served with this summons, to
serve a notice of appearance on the Plaintiff's attorneys within twenty days after the
service of this summons, exclusive of the day of service, where service is made by
delivery upon you personally within the state, or within 30 days after completion of
service where service is made in any other manner. In case of your failure to appear or
answer, judgment will be taken against you by default for the relief demanded in the
complaint to be assessed by the Court.

Dated: Bronx, N.Y.
March 2, 2009


By: **JONATHAN L. GLEIT, ESQ.**
Attorney for Plaintiff
KING SOLOMON PETERSON

888 Grand Concourse
Suite 1-O
Bronx, NY 10451
(718) 742-0200

To:
CITY OF NEW YORK
CORPORATION COUNSEL
100 Church Street
4th Floor, Law Dept.
New York, New York 10007

P.O. ABDIEL ANDERSON, Shield 06803 of NARCBX
P.O. MANUEL SANCHEZ, Shield 7110 of NBBX
1 Police Plaza, NY NY 10038

BRONX COUNTY
CLERK
2-2-09 3:25 PM

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
KING SOLOMON PETERSON,

Plaintiff,

Index No.:

VERIFIED COMPLAINT

-against-

CITY OF NEW YORK, THE NEW YORK CITY POLICE
DEPARTMENT, P.O. ABDIEL ANDERSON, P.O. MANUEL
SANCHEZ and OFFICER(S) JOHN AND JAMES DOE,
names being fictitious and meant to designate arresting
officers,

Defendants.
-----X

Plaintiff, by his attorney, **Jonathan L. Gleit, Esq.**, complaining of the Defendants,
respectfully alleges, upon information and belief, as follows:

**AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF THE
PLAINTIFF KING SOLOMON PETERSON**

1. At the time of the commencement of this action, Plaintiff KING SOLOMON PETERSON was and still is resident of the County of Bronx, City and State of New York.
2. That the cause of action alleged herein arose in the County of Bronx, City and State of New York.
3. That at all times herein mentioned, Defendants CITY OF NEW YORK, inclusive of its Department, THE NEW YORK CITY POLICE DEPARTMENT, was, and still is Municipal Corporation and body politic, duly formed, organized and existing under and by virtue of the laws of the City and State of New York.
4. That on or about January 4, 2008, and within 90 days after the claim herein sued

upon, plaintiff caused a Notice of Claim, sworn to by or on behalf of the claimant, to be served upon the defendant CITY OF NEW YORK, by delivering a copy thereof, in duplicate, to the offices of the defendant CITY OF NEW YORK, which said Notice of Claim set forth the name and post office address of the claimant and claimant's attorney, the nature of the claim, the time when, the place where, and the manner in which the claim arose and items of damage or injuries claimed to have been sustained, so far as then practicable. At least thirty (30) days have elapsed prior to the commencement of this action since the service of such Notice of Claim as aforesaid and adjustment of payment thereof has been neglected or refused by the defendant, and this action was commenced on the claim within one year and ninety days after the happening of the event upon which the claim is based.

5. That this action is being commenced within one year and ninety days after accrual of this cause of action, or within the time allowed by law.

6. That on or about December 15, 2007 at approximately 1 P.M., at or near the corner of East 174th Street and Hoe Avenue . Bronx, New York, the plaintiff KING SOLOMON PETERSON was improperly arrested and confined without proper authority or justification, having no reason in law or in fact to arrest KING SOLOMON PETERSON.

7. That at all times herein mentioned, Defendants, their agents, servants and / or employees, deprived the plaintiff of Due Process under Law.

8. That the acts of the Defendants, CITY OF NEW YORK, their agents, servants and / or employees, NEW YORK CITY POLICE DEPARTMENT, P.O. ABDIEL ANDERSON, P.O. MANUEL SANCHEZ and OFFICER[S] JOHN AND/OR JAMES DOE were acts of discrimination, were racist, and improper, and that the defendants' actions amounted to False Arrest, and the defendants were otherwise careless, reckless and

negligent.

9. That the plaintiff KING SOLOMON PETERSON, suffered severe and serious physical, emotional and psychological trauma, damages and injuries due to the negligence, carelessness and recklessness of Defendants CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, P.O. ABDIEL ANDERSON, P.O. MANUEL SANCHEZ and OFFICER[S] JOHN AND/OR JAMES DOE.

10. That on and about December 15, 2007, P.O. ABDIEL ANDERSON was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.

11. That on and about December 15, 2007, P.O. MANUEL SANCHEZ was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.

12. That on and about December 15, 2007, at approximately 1 P.M., P.O. ABDIEL ANDERSON was working and acting within the scope of his employment as a Police Officer, and under the color of law.

13. That on and about December 15, 2007, at approximately 1 P.M., P.O. MANUEL SANCHEZ was working and acting within the scope of his employment as a Police Officer, and under the color of law.

14. That on and about December 15, 2007, OFFICER[S] JOHN AND/OR JAMES DOE were employed by the CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

15. That on and about December 15, 2007, at approximately 1 P.M., OFFICER[S] JOHN AND/OR JAMES DOE were working and acting within the scope of their employment as a Police Officer[s], and under the color of law.

16. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

17. That as a result of the foregoing, the plaintiff KING SOLOMON PETERSON was

damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF
KING SOLOMON PETERSON

18. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 17 as though more fully set forth herein.

19. That the defendants, their agents, servants and/or employees arrested the plaintiff without any basis in law or fact and without reasonable, probable or just cause.

20. That the defendants, their agents, servants and/or employees arrested the plaintiff without any basis in law or fact, by making false accusations against him, when they knew, or in the exercise of reasonable care, should have known they were false.

21. That the defendants P.O. ABDIEL ANDERSON, P.O. MANUEL SANCHEZ and/or OFFICER[S] JOHN AND JAMES DOE, did knowingly and maliciously provide false information to the prosecutor of the criminal action against plaintiff thereby causing him to suffer an unlawful seizure of his person and property.

22. That defendants, their agents, servants and/or employees continued to incarcerate plaintiff and deny him his freedom after they knew, or should have known, he was innocent of all charges being alleged against him.

23. That the defendants, their agents, servants and/or employees unlawfully arrested, detained, imprisoned and searched the plaintiff and took his property without any basis in law or fact, and with excessive, unreasonable and unnecessary force, thereby causing freight, shock, emotional distress and physical consequences.

24. That the CITY OF NEW YORK allowed, condoned, permitted and caused a policy and procedure of arresting innocent citizens, almost exclusively citizens of a racial

minority.

25. The herein above described actions and omissions, engaged in under the color of law by the defendants, including the CITY OF NEW YORK, sued as a person within the meaning of Title 42 U.S.C. 1983, et seq., by policy, procedure and act, deprived the plaintiff of rights secured to him by the Constitution and laws of the United States, including, but not limited to his First Amendment right of freedom of expression, his Fourth Amendment right to be free from unlawful seizures of his person, his Fifth Amendment rights of due process of law and to equal protection of the laws, including the right to be free from unjustified confinement utilized by the police, his Eighth Amendment right to be free from cruel and unusual punishment, and under Title 42 U.S.C. 1983, et seq.

26. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

27. That as a result of the foregoing, the plaintiff KING SOLOMON PETERSON was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF
KING SOLOMON PETERSON

28. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 27 as though more fully set forth herein.

29. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants.

30. That solely by reason of the aforesaid occurrence, and as a direct and proximate

result of the defendant's negligence, Plaintiff KING SOLOMON PETERSON was denied his freedom and rights under the federal and state constitutions and received great and severe injuries with accompanying physical and mental pain and suffering; that the plaintiff was made, still is and will continue to be sick, sore, lame and disabled and sustained other injuries, both internal and external, all of which, upon information and belief, will be permanent; that it was necessary and will be so in the future, to incur medical expenses for the care, treatment and attention of the plaintiff and for the purchase of drugs and medicines, and that plaintiff was and in the future will be prevented from attending to plaintiff's usual vocation and avocations; all to the plaintiff's damage in a sum which exceeds the jurisdiction of all lower Courts.

31. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

AS AND FOR A FORTH CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF

KING SOLOMON PETERSON

32. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 31 as though more fully set forth herein.

33. That the defendants, their agents, servants and/or employees prosecuted a criminal action against the Plaintiff without any basis in law or fact.

34. That the defendants, their agents, servants and/or employees continued to prosecuted the criminal action against the Plaintiff due to racism and prejudice and without any basis in law or fact.

35. That the defendants P.O. ABDIEL ANDERSON, P.O. MANUEL SANCHEZ and/or OFFICER[S] JOHN AND JAMES DOE, did knowingly and maliciously provide

false information to the prosecutor of the criminal action against plaintiff thereby causing him to suffer an unlawful seizure of his person and property.

36. That defendants, their agents, servants and/or employees continued to incarcerate plaintiff and deny him his freedom after they knew, or should have known, he was innocent of all charges being alleged against him.

37. That all criminal charges were Dismissed by the a Justice of the Supreme Court on or about December 20, 2007.

38. That by reason of the aforementioned. the Defendants actions amounted to malicious prosecution.

39. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

40. That as a result of the foregoing, the Plaintiff KING SOLOMON PETERSON was damaged in a sum which exceeds the jurisdiction of all lower Courts.

WHEREFORE, Plaintiffs demands judgment against the Defendants on the First Cause of Action in a sum which exceeds the jurisdiction of all lower Courts, on the Second Cause of Action in a sum which exceeds the jurisdiction of all lower Courts, on the Third Cause of Action in a sum which exceeds the jurisdiction of all lower Courts, on the Fourth Cause of Action in a sum which exceeds the jurisdiction of all lower Courts, together with the costs and disbursements of this action.

Dated: Bronx, N.Y.
March 2, 2009


By: JONATHAN L. GLEIT, ESQ.
Attorney for Plaintiff
KING SOLOMON PETERSON

888 Grand Concourse

Suite 1-O
Bronx, NY 10451
(718) 742-0200

To:

CITY OF NEW YORK
CORPORATION COUNSEL
100 Church Street
4th Floor, Law Dept.
New York, New York 10007

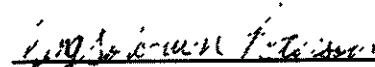
PLAINTIFF'S VERIFICATION

KING SOLOMON PETERSON, affirms the following to be true under the penalties of perjury:

I am Plaintiff in the within action and have read the annexed

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon personal knowledge, facts, records, and other pertinent information contained in my files.

DATED: BRONX, N.Y.



KING SOLOMON PETERSON

INDEX NO.:
SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

KING SOLOMON PETERSON,

Plaintiff,

-against-

CITY OF NEW YORK, THE NEW YORK CITY POLICE
DEPARTMENT, P.O. ABDIEL ANDERSON, P.O. MANUEL
SANCHEZ and OFFICER[S] JOHN AND JAMES DOE,
names being fictitious and meant to designate arresting
officers,

Defendants.

Summons and Verified Complaint

JONATHAN L. GLEIT, ESQ.

Attorney for the Plaintiff

KING SOLOMON PETERSON

888 Grand Concourse
Suite 1-O
Bronx, New York 10451
(718) 742-0200
